# NHRC AND SHRC

**STATUTORY ORIGIN AND THE → NHRC COMPOSITION AND DEEMED-MEMBER → NHRC APPOINTMENT, TENURE AND → SHRC DESIGN AND THE → SECTION 12 FUNCTIONS AND → INVESTIGATION SUPPORT AND PROCEDURAL**

Read the thick cyan rail from Stage 00 to the final core synthesis. Each card uses a concept-appropriate structure; the grey E card is optional enrichment only and never repairs missing core content.

● PRIMARY CORE FLOW ◆ SUBORDINATE EXTRA ★ APPROVAL / REVIEW

CORE BEFORE EXTRA • prior artefacts unchanged • exact same master drives poster and tiles

Approval: FALSE • Pending user review • active generation g3 • explicit approval of this exact generation is required • all prior artifacts unchanged

## 00 STATUTORY ORIGIN AND THE SECTION 2 HUMAN-RIGHTS FIELD

STATUTORY ORIGIN AND THE SECTION 2 HUMAN-RIGHTS FIELD · PROTECTION OF HUMAN RIGHTS ACT, 1993 DEEMED COMMENCEMENT 28 · PRESIDENTIAL ASSENT 8 JANUARY 1994. · AMENDMENTS IN 2006 AND 2019 RESHAPE DESIGN; COMMISSIONS REMAIN · SECTION 2(D) RIGHTS RELATING TO LIFE, LIBERTY, EQUALITY AND · GUARANTEED BY CONSTITUTION OR EMBODIED IN DEFINED INTERNATIONAL COVENANTS · ENFORCEABLE BY COURTS IN INDIA. · SECTION 2(F)

**CONSTITUTIONAL BASIS / ARTICLE**

- PROTECTION of HUMAN RIGHTS ACT, 1993 deemed commencement 28 September 1993
- presidential assent 8 January 1994.
- Amendments in 2006 and 2019 reshape design; commissions remain statutory.
- SECTION 2(d) rights relating to life, liberty, equality and dignity

**POWER / PROCEDURE**

- guaranteed by Constitution or embodied in defined International Covenants
- enforceable by courts in India.
- SECTION 2(f)
- ICCPR + ICESCR + notified UN General Assembly covenant or convention.

**CHECK / LIMIT**

- INSTITUTIONAL MAP
- NHRC at Union level
- SHRCs at State level
- Human Rights Courts as trial route.

**FEDERAL / RIGHTS IMPACT**

- LIMIT human-rights importance does not convert NHRC or SHRC into a constitutional court.

**ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: LIMIT human-rights importance does not convert NHRC or SHRC into a constitutional court.**

## 01 NHRC COMPOSITION AND DEEMED-MEMBER BOUNDARY

NHRC COMPOSITION AND DEEMED-MEMBER BOUNDARY · CHAIRPERSON + FIVE ORDINARY MEMBERS UNDER SECTION 3(2). · PERSON WHO HAS BEEN CJI OR SUPREME COURT JUDGE. · JUDICIAL ROUTES · SUPREME COURT JUDGE + HIGH COURT CHIEF JUSTICE. · THREE EXPERTS; AT LEAST ONE WOMAN. · SEVEN DEEMED MEMBERS · CHIEF COMMISSIONER PWD.

NHRC: Chairperson + five ordinary members under section 3(2). → Chair: person who has been CJI or Supreme Court Judge. → Judicial routes: Supreme Court Judge + High Court Chief Justice. → Three experts; at least one woman. → SEVEN DEEMED MEMBERS

**CONSTITUTIONAL BASIS / ARTICLE**

- NHRC: Chairperson + five ordinary members under section 3(2).
- Chair: person who has been CJI or Supreme Court Judge.

**POWER / PROCEDURE**

- Judicial routes: Supreme Court Judge + High Court Chief Justice.
- Three experts; at least one woman.

**CHECK / LIMIT**

- SEVEN DEEMED MEMBERS
- Chief Commissioner PwD.

**FEDERAL / RIGHTS IMPACT**

- They participate for section 12(b)-(j), not section 12(a) complaint inquiry.
- 'deemed member' is not a merger of specialised commissions.

**ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: 'deemed member' is not a merger of specialised commissions.**

## 02 NHRC APPOINTMENT, TENURE AND REMOVAL

NHRC APPOINTMENT, TENURE AND REMOVAL · SIX-MEMBER COMMITTEE RECOMMENDS · PRESIDENT APPOINTS BY WARRANT. · SITTING JUDICIAL APPOINTEE REQUIRES CONSULTATION WITH CJI. · TENURE THREE YEARS; AGE CEILING 70; REAPPOINTMENT PERMITTED; POST-OFFICE · REMOVAL PROVED MISBEHAVIOUR/INCAPACITY · PRESIDENT REFERENCE · SUPREME COURT INQUIRY/REPORT

Six-member committee recommends → President appoints by warrant.

Sitting judicial appointee requires consultation with CJI. → TENURE three years; age ceiling 70; reappointment permitted; post-office government employment barred. → REMOVAL proved misbehaviour/incapacity: President reference → Supreme Court inquiry/report → removal.

**CONSTITUTIONAL BASIS / ARTICLE**

- Six-member committee recommends → President appoints by warrant.
- Sitting judicial appointee requires consultation with CJI.

**POWER / PROCEDURE**

- TENURE three years; age ceiling 70; reappointment permitted; post-office government employment barred.
- REMOVAL proved misbehaviour/incapacity: President reference → Supreme Court inquiry/report → removal.

**CHECK / LIMIT**

- Separate direct statutory grounds remain distinct.
- LIMIT committee vacancy does not by itself invalidate appointment, but judicial review remains.

**FEDERAL / RIGHTS IMPACT**

- Six-member committee recommends → President appoints by warrant.
- Sitting judicial appointee requires consultation with CJI.

**ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: LIMIT committee vacancy does not by itself invalidate appointment, but judicial review remains.**

## 03 SHRC DESIGN AND THE FEDERAL JURISDICTION LINE

SHRC DESIGN AND THE FEDERAL JURISDICTION LINE · SHRC MAY BE CONSTITUTED BY STATE GOVERNMENT. · PERSON WHO HAS BEEN HIGH COURT CHIEF JUSTICE OR · ONE JUDICIAL MEMBER + ONE HUMAN-RIGHTS EXPERT. · GOVERNOR APPOINTS AFTER STATE COMMITTEE RECOMMENDATION; PRESIDENT REMOVES UNDER · STATE LIST + CONCURRENT LIST MATTERS. · NO DUPLICATE INQUIRY WHERE NHRC OR ANOTHER COMMISSION IS · SECTION 29 ADAPTS SECTION 12 AND OMITS TREATY-STUDY CLAUSE

**CONSTITUTIONAL BASIS / ARTICLE**

- SHRC MAY be constituted by State Government.
- Chair: person who has been High Court Chief Justice or Judge.

**POWER / PROCEDURE**

- One judicial member + one human-rights expert.
- Governor appoints after State committee recommendation; President removes under the Act.

**CHECK / LIMIT**

- State List + Concurrent List matters.
- No duplicate inquiry where NHRC or another commission is seized.

**FEDERAL / RIGHTS IMPACT**

- Section 29 adapts section 12 and omits treaty-study clause 12(f).
- TRAP appointment by Governor does not mean removal by Governor.

**ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: TRAP appointment by Governor does not mean removal by Governor.**

## 04 SECTION 12 FUNCTIONS AND SECTION 13 EVIDENCE POWERS

SECTION 12 FUNCTIONS AND SECTION 13 EVIDENCE POWERS · SECTION 12 FUNCTIONS SUO MOTU OR PETITION INQUIRY · COURT INTERVENTION WITH APPROVAL INSTITUTION VISITS · REVIEW CONSTITUTIONAL/LEGAL SAFEGUARDS REVIEW FACTORS INHIBITING RIGHTS · STUDY TREATIES RESEARCH · NGO ENCOURAGEMENT · OTHER NECESSARY FUNCTIONS. · SECTION 13 INQUIRY POWERS SUMMON AND EXAMINE ON OATH

**CONSTITUTIONAL BASIS / ARTICLE**

- SECTION 12 FUNCTIONS suo motu or petition inquiry
- court intervention with approval institution visits
- review constitutional/legal safeguards review factors inhibiting rights
- study treaties research

**POWER / PROCEDURE**

- NGO encouragement
- other necessary functions.
- SECTION 13 INQUIRY POWERS summon and examine on oath
- affidavits public records

**CHECK / LIMIT**

- specified additional powers.
- SECTION 14 INVESTIGATION
- Commission may use Central or State government agency or officers with consent.
- PROCEDURAL FAIRNESS notice and hearing where reputation or conduct may be prejudicially affected.

**FEDERAL / RIGHTS IMPACT**

- LIMIT civil-court evidence powers support inquiry
- they do not create ordinary civil or criminal jurisdiction.

**ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: they do not create ordinary civil or criminal jurisdiction.**

## 05 INVESTIGATION SUPPORT AND PROCEDURAL FAIRNESS

INVESTIGATION SUPPORT AND PROCEDURAL FAIRNESS · SECTIONS 11 AND 14 · CENTRAL GOVERNMENT MAKES SPECIFIED STAFF AVAILABLE TO NHRC. · COMMISSION MAY USE CENTRAL/STATE AGENCY OR OFFICERS WITH GOVERNMENT · AGENCY WORKS UNDER COMMISSION DIRECTION FOR THE ASSIGNED INVESTIGATION · SECTION 16 · GIVE A REASONABLE OPPORTUNITY OF HEARING WHERE CONDUCT OR · LIMIT GOVERNMENT-LINKED STAFF CAN SUPPORT CAPACITY, BUT DOES NOT

SECTIONS 11 AND 14 → Central Government makes specified staff available to NHRC. → Commission may use Central/State agency or officers with government consent. → Agency works under Commission direction for the assigned investigation and reports back. → SECTION 16

**CONSTITUTIONAL BASIS / ARTICLE**

- SECTIONS 11 AND 14
- Central Government makes specified staff available to NHRC.

**POWER / PROCEDURE**

- Commission may use Central/State agency or officers with government consent.
- Agency works under Commission direction for the assigned investigation and reports back.

**CHECK / LIMIT**

- SECTION 16
- Give a reasonable opportunity of hearing where conduct or reputation may be prejudicially affected.

**FEDERAL / RIGHTS IMPACT**

- LIMIT government-linked staff can support capacity, but does not equal an independent permanent investigation cadre.
- SECTIONS 11 AND 14

**ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: LIMIT government-linked staff can support capacity, but does not equal an independent permanent investigation cadre.**

## 06 INQUIRY OUTPUTS, REPORTING AND THE ONE-YEAR BAR

INQUIRY OUTPUTS, REPORTING AND THE ONE-YEAR BAR · ENTRY COMPLAINT OR SUO MOTU MATERIAL · JURISDICTION SCREEN · INQUIRY OR INVESTIGATION. · SECTION 36 NO PARALLEL INQUIRY WHERE ANOTHER NAMED COMMISSION · SECTION 36(2) · NO INQUIRY AFTER ONE YEAR FROM THE ALLEGED VIOLATIVE · SECTION 18 OUTPUTS RECOMMEND COMPENSATION OR DAMAGES RECOMMEND PROSECUTION

ENTRY complaint or suo motu material → jurisdiction screen → inquiry or investigation.

SECTION 36 no parallel inquiry where another named commission is seized. → Section 36(2): no inquiry after one year from the alleged violative act. → SECTION 18 OUTPUTS recommend compensation or damages recommend prosecution or other

**CONSTITUTIONAL BASIS / ARTICLE**

- ENTRY complaint or suo motu material → jurisdiction screen → inquiry or investigation.
- SECTION 36 no parallel inquiry where another named commission is seized.
- Section 36(2): no inquiry after one year from the alleged violative act.

**POWER / PROCEDURE**

- SECTION 18 OUTPUTS recommend compensation or damages recommend prosecution or other
- action approach Supreme Court or High Court recommend immediate interim relief.
- FOLLOW-UP government comments/action report ordinarily within one month

**CHECK / LIMIT**

- Commission publishes report, recommendation and response.
- LEGAL EFFECT recommendation carries public and institutional weight but is not a self-executing decree.
- TRAP action-taken reporting != mandatory acceptance and grave facts alone do not erase section 36(2).

**FEDERAL / RIGHTS IMPACT**

- SECTION 18 OUTPUTS recommend compensation or damages recommend prosecution or other

**ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: TRAP action-taken reporting != mandatory acceptance and grave facts alone do not erase section 36(2).**

## 07 SECTION 19 ARMED-FORCES PROCEDURE

SECTION 19 ARMED-FORCES PROCEDURE · NHRC OWN MOTION/PETITION · SEEK CENTRAL GOVERNMENT REPORT · EITHER STOP OR RECOMMEND · CENTRAL GOVERNMENT REPORTS ACTION WITHIN THREE MONTHS · COMMISSION PUBLISHES REPORT, RECOMMENDATION AND RESPONSE. · ARMED FORCES · NAVAL, MILITARY, AIR AND OTHER ARMED FORCES OF UNION.

**CONSTITUTIONAL BASIS / ARTICLE**

- NHRC own motion/petition → seek Central Government report
- either stop or recommend → Central Government reports action within three months

**POWER / PROCEDURE**

- Commission publishes report, recommendation and response.
- Armed forces = naval, military, air and other armed forces of Union.

**CHECK / LIMIT**

- State police are not automatically within this definition.
- LIMIT section 19 replaces ordinary direct inquiry with a report-based route.

**FEDERAL / RIGHTS IMPACT**

- It does not create a rights-free zone.
- NHRC own motion/petition → seek Central Government report

**ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: LIMIT section 19 replaces ordinary direct inquiry with a report-based route.**

## 08 HUMAN RIGHTS COURTS AND PROSECUTION BRIDGE

HUMAN RIGHTS COURTS AND PROSECUTION BRIDGE · SECTIONS 30-31 · STATE MAY, WITH HIGH COURT CHIEF JUSTICE CONCURRENCE, SPECIFY · SPEEDY TRIAL OF OFFENCES ARISING FROM HUMAN-RIGHTS VIOLATIONS. · SPECIAL PUBLIC PROSECUTOR · PUBLIC PROSECUTOR OR ADVOCATE WITH AT LEAST SEVEN YEARS' · COMMISSION INQUIRES/RECOMMENDS · POLICE INVESTIGATE OFFENCES

**CONSTITUTIONAL BASIS / ARTICLE**

- SECTIONS 30-31
- State MAY, with High Court Chief Justice concurrence, specify a Court of Session for each district.

**POWER / PROCEDURE**

- Purpose: speedy trial of offences arising from human-rights violations.
- Special Public Prosecutor: Public Prosecutor or advocate with at least seven years' practice.

**CHECK / LIMIT**

- Commission inquires/recommends → police investigate offences
- prosecutor presents case → Sessions Court adjudicates.

**FEDERAL / RIGHTS IMPACT**

- Notification is enabling; do not assume automatic nationwide operation.
- SECTIONS 30-31

**ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Notification is enabling; do not assume automatic nationwide operation.**

## 09 OVERLAP, REFERRAL AND SPECIALISED COMMISSIONS

OVERLAP, REFERRAL AND SPECIALISED COMMISSIONS · NHRC NATIONAL STATUTORY MANDATE SUBJECT TO PHRA EXCLUSIONS AND · SHRC INQUIRES INTO MATTERS RELATABLE TO STATE LIST AND · SECTION 29 ADAPTS FUNCTIONS AND OMITS TREATY STUDY. · NHRC MAY TRANSFER A COMPLAINT TO A COMPETENT SHRC · NCSC, NCST AND NCBC HAVE CONSTITUTIONAL SAFEGUARD MANDATES · WOMEN, CHILD, MINORITY AND DISABILITY BODIES HAVE SPECIALISED STATUTORY · COORDINATION COMMON INTAKE METADATA

NHRC national statutory mandate subject to PHRA exclusions and transfer rules.

SHRC inquires into matters relatable to State List and Concurrent List → section 29 adapts functions and omits treaty study. → NHRC may transfer a complaint to a competent SHRC under statutory conditions.

**CONSTITUTIONAL BASIS / ARTICLE**

- NHRC national statutory mandate subject to PHRA exclusions and transfer rules.
- SHRC inquires into matters relatable to State List and Concurrent List
- section 29 adapts functions and omits treaty study.

**POWER / PROCEDURE**

- NHRC may transfer a complaint to a competent SHRC under statutory conditions.
- NCSC, NCST and NCBC have constitutional safeguard mandates.
- Women, child, minority and disability bodies have specialised statutory fields.

**CHECK / LIMIT**

- COORDINATION common intake metadata → reasoned referral → no duplicate inquiry
- joint thematic work → preserve specialist voice.
- LIMIT an umbrella merger cannot absorb constitutional commissions through ordinary PHRA amendment.

**FEDERAL / RIGHTS IMPACT**

- NHRC may transfer a complaint to a competent SHRC under statutory conditions.

**ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: LIMIT an umbrella merger cannot absorb constitutional commissions through ordinary PHRA amendment.**

## 10 PARIS PRINCIPLES, ACCREDITATION AND CASE-LAW CONTROLS

PARIS PRINCIPLES, ACCREDITATION AND CASE-LAW CONTROLS · PARIS PRINCIPLES, 1993 BROAD LEGAL MANDATE · OPEN APPOINTMENT ADEQUATE RESOURCES. · STABLE TENURE · INDEPENDENT METHODS · DOMESTIC TEST · PHRA MANDATE AND INQUIRY POWERS VERSUS POLICE/DEPUTATION DEPENDENCE. · SHORT · GANHRI CONTROL

PARIS PRINCIPLES, 1993 broad legal mandate

open appointment adequate resources → stable tenure → independent methods

**CONSTITUTIONAL BASIS / ARTICLE**

- PARIS PRINCIPLES, 1993 broad legal mandate
- open appointment adequate resources
- stable tenure
- independent methods
- DOMESTIC TEST

**POWER / PROCEDURE**

- GANHRI CONTROL
- March 2025 SCA recommended B downgrade.
- India challenged with required Bureau support.
- Public membership page continued to list India as A on the 24 August 2026 control.
- SAFE LANGUAGE current public A listing + unresolved official scrutiny.

**CHECK / LIMIT**

- A listing != proof of perfect Paris-Principles compliance.
- Paramjit Kaur v. State of Punjab (1999)
- Supreme Court used NHRC as an expert body assisting Article 32 jurisdiction.
- This constitutional assignment is not ordinary PHRA jurisdiction.
- N.C. Dhoundial v. Union of India (2003) section 36(2) is a jurisdictional bar

**FEDERAL / RIGHTS IMPACT**

- EEVFAM (2016) excessive-force allegations require lawful inquiry under Article 32 oversight
- NHRC is a valuable route but not exclusive and recommendations were not made generally binding.
- Court-assigned expertise may exceed the ordinary route, but an autonomous statutory commission remains bound by statutory limits.

**ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Court-assigned expertise may exceed the ordinary route, but an autonomous statutory commission remains bound by statutory limits.**

## 11 LIMITS, REFORMS, PYQS AND QUALIFIED VERDICT

LIMITS, REFORMS, PYQS AND QUALIFIED VERDICT · STRUCTURAL LIMITS RECOMMENDATORY OUTPUTS · ONE-YEAR BAR · ARMED-FORCES REPORT ROUTE GOVERNMENT-LINKED INVESTIGATION SUPPORT · FEDERAL AND OVERLAP BOUNDARIES. · PRACTICAL LIMITS VACANCIES · DELAYED REPORTS · UNEVEN SHRC CAPACITY WEAK HUMAN RIGHTS COURT ROUTING

STRUCTURAL LIMITS recommendatory outputs → one-year bar → armed-forces report route government-linked investigation support → federal and overlap boundaries. → PRACTICAL LIMITS vacancies

**CONSTITUTIONAL BASIS / ARTICLE**

- STRUCTURAL LIMITS recommendatory outputs
- one-year bar
- armed-forces report route government-linked investigation support
- federal and overlap boundaries.
- PRACTICAL LIMITS vacancies

**POWER / PROCEDURE**

- delayed reports
- uneven SHRC capacity weak Human Rights Court routing
- limited civil-society trust.
- REFORM independent multidisciplinary investigation cadre
- open plural appointments → time-bound reasoned response

**CHECK / LIMIT**

- grave/concealed-violation limitation reform
- safeguarded armed-forces fact-finding → interoperable referrals.
- PYQ ROUTES
- 2018 umbrella-commission debate
- 2021 limitations and remedies

**FEDERAL / RIGHTS IMPACT**

- 2023 body-classification support.
- MAINS VERDICT strengthen fact-finding, independence and follow-through without misdescribing NHRC as a court.

**ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: MAINS VERDICT strengthen fact-finding, independence and follow-through without misdescribing NHRC as a court.**

## E SUBORDINATE ENRICHMENT — ONLY AFTER THE COMPLETE CORE

EXTRA · OPTIONAL ADVANCED ENRICHMENT · COMPARATIVE INSTITUTIONAL DESIGN REFINEMENTS · [ANALYSIS] A STRONGER COMMISSION NEED NOT BECOME A COURT. · A CALIBRATED MODEL CAN PRESERVE RECOMMENDATORY INQUIRY WHILE IMPOSING · [ANALYSIS] INDEPENDENCE HAS SEPARATE DIMENSIONS · APPOINTMENT PLURALISM, INVESTIGATIVE AUTONOMY, BUDGET ADEQUACY, SECURITY OF TENURE · A REFORM ANSWER SHOULD DIAGNOSE EACH RATHER THAN USE · [LIMIT] PARIS PRINCIPLES AND GANHRI ACCREDITATION ASSESS INSTITUTIONAL COMPATIBILITY

**OPTIONAL DOCTRINE / CASE**

- Comparative institutional design refinements
- [ANALYSIS] A stronger commission need not become a court.
- A calibrated model can preserve recommendatory inquiry while imposing a statutory comply-or-give-reasons duty and enabling court escalation on
- [ANALYSIS] Independence has separate dimensions: appointment pluralism, investigative autonomy, budget adequacy, security of tenure and publication/follow-up.

**ADVANCED LIMIT**

- A reform answer should diagnose each rather than use "toothless" as a substitute for analysis.
- [LIMIT] Paris Principles and GANHRI accreditation assess institutional compatibility
- they do not themselves alter the PHRA. invalidate appointments or convert recommendations into decrees.
- [ANALYSIS] Shared intake standards and reasoned referral can reduce NHRC-SHRC-specialist overlap without erasing constitutional or group-specific mandates.

**COMPARATIVE NUANCE**

- Comparative institutional design refinements - [ANALYSIS] A stronger commission need not become a court.
- A calibrated model can preserve recommendatory inquiry while imposing a
- statutory comply-or-give-reasons duty and enabling court escalation on default.

**OPTIONAL STATUS —** This optional depth is unnecessary for a competent core answer; use it only for added nuance after the complete core has been written.

END OF MASTER CANVAS • poster embeds this exact master • tiled pages are overlapping crops of the same pixels